

23GDCV02547 23GDCV02547

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Case Number: 23GDCV02547 Hearing Date: August 14, 2026 Dept: D

TENTATIVE RULING

Calendar: 13

Date: August 14, 2026

Case No: 23GDCV02547 Trial Date: n/a

Case Name: Valdes v. KIA America, Inc., et al.

MOTION TO TAX COSTS

[CRC, rule 3.1700(b)]

Moving Party: Defendant, Kia America, Inc.

Responding Party: Plaintiff, Mirla Valdes

RELIEF REQUESTED:

Tax Plaintiffs' Memorandum of Costs seeking \$15,865.27 by \$10,080.67, for a total reduced cost award of \$5,784.60.

CAUSES OF ACTION: from Complaint

1) Violation of Song-Beverly Act – Breach of Express Warranty

2) Violation of Song-Beverly Act – Breach of Implied Warranty

3) Violation of Song-Beverly Act Section 1793.2

SUMMARY OF FACTS:

Mirla Valdes ("Plaintiff") alleges that on October 20, 2022, Plaintiff purchased a 2023 Kia Sorento for which Kia America, Inc. ("Defendant") issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties and that other defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP, § 1032, subd. (b).) A non-prevailing party may dispute any or all of the items in the prevailing party's costs memorandum by a motion to strike or tax costs. (CRC, rule 3.1700(b).)

CCP section 1033.5 subdivision (a) sets forth the items allowable as costs and Section 1033.5 subdivision (b) details the items that are not allowable as costs. "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion." (Acosta v. SI Corp. (2005) 129 Cal.App.4th 1370, 1380.) Costs must be both "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" (CCP, § 1033.5 subd. (c)(1)) and reasonable in amount. (CCP, § 1033.5 subd. (c)(2).)

If the items on a verified memorandum of costs appear to be permitted by statute, the "'verified memorandum of costs is prima facie evidence of the propriety' of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486.) To meet the burden, the losing party must present evidence and prove that the costs are not recoverable. (See Litt v. Eisenhower Medical Center (2015) 237 Cal.App.4th 1217, 1224.)

Song-Beverly allows a successful plaintiff to recover both "costs" and "expenses." (Civil Code, § 1794, subd. (d).) Courts have held that "it is clear the Legislature intended the word

'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Jensen v.

BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137.) The court in Jensen

held that "[t]he legislative history indicates the Legislature exercised its power to permit the

recovery of expert witness fees by prevailing buyers under the Act ...," noting that the

legislature included "expenses" in the lemon law act because "[t]he addition of awards of "costs

and expenses" by the court to the consumer to cover such out-of-pocket expenses as filing fees,

expert witness fees, marshall's fees, etc., should open the litigation process to everyone.'

[Citation.]" (Ibid.)

Plaintiffs request a total of \$15,865.27 in litigation costs and expenses. (Haroutunian Decl., Ex. A [Memo of Costs].) Defendant seeks to tax certain of Plaintiff's requested costs on grounds that the amounts claimed are not reasonable.

Deposition Costs

Defendant objects to \$4,167.05 in deposition costs on grounds that certain transcription costs and additional charges were not necessary and are thus not recoverable under CCP section 1033.5. (Mot., p. 3:1-12.) Specifically, Defendant objects to "Plaintiff's deposition transcript of \$1,591.30, Darell Blasjo's deposition transcript of \$1,810.55, the Exhibit fees of \$477.40 associated with the deposition transcript for KA's Expert Jeffrey Richards, and the \$200.00 emergency add-on, \$43.55 exhibit fees, and \$35.00 processing and handling associated with the deposition transcript of KA's Person Most Knowledgeable." (Reply., p. 3:20-23.) Defendant argues that the expedited, convenience, summary, electronic, logistics, litigation-package, and similar add-on charges were merely convenient for counsel, as opposed to reasonably necessary to the litigation. (Reply., p. 4:9-10.)

Costs incurred in taking, video recording, and transcribing necessary depositions are expressly allowable under CCP section 1033.5, subdivision (a)(3). The Court does not find that the transcription costs or the corresponding exhibit or processing and handling fees are unreasonable. However, the \$200 emergency add-on fee was not reasonably necessary to the litigation.

Thus, the Court will strike the deposition costs in the amount of \$200.

Service of Process

Defendant objects to \$282.25 in service of process fees for subpoenas directed to the dealership although no witness from the dealership was ever deposed. (Mot., p. 3:26-28.) Defendant also objects to the subpoena fees on the basis that Plaintiff served two identical subpoenas and that the charges are duplicative. (Mot., p. 4:3-11.)

A party's entitlement to recover service of process fees does not depend on using the subpoenaed documents or calling the witness at trial. (CCP, § 1033.5 subd. (a)(4); Doe v. Los Angeles County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, 694.) In addition, upon review of the invoices, the charges are for separate items and are not duplicative.

Thus, the Court declines to strike the service of process costs.

Expert Fees

Defendant next objects to \$3,257.66 for expert witness costs on grounds that expert fees not ordered by the court are not allowable as costs under CCP section 1033.5 subdivision (b)(1). (Mot., p. 4:15-22.) This argument is not persuasive. Under Civil Code section 1794, expert witness fees are recoverable. (See also Jensen, supra, 35 Cal.App.4th at p. 138.) Defendant also argues that the Court should strike these fees because Plaintiff has not demonstrated that the time and hourly rates charged by the expert are reasonable. (Mot., p. 4:16-17.) Plaintiff submits invoices substantiating the witness fees. (Decl., pp. 53-58.)

Thus, the Court declines to strike the expert witness costs.

Interpreter Fees

Defendant next objects to \$2,070.00 in interpreter fees because under CCP section 1033.5, subdivision (a)(12), court interpreter fees are only recoverable if they are authorized by the court for an indigent person represented by a qualified legal services project, or a pro bono attorney, which is not the case here. (Mot., pp. 4:24-27.) The Court finds that interpreter fees fairly fall under the more expansive costs and expenses allowed under Civil Code section 1794, subdivision (d). In the reply, Defendant argues that the interpreter fees sought exceed the amounts allowed by the Payment Policies for Independent Contractor Interpreters, published by the Judicial Council. (Reply, p. 5:9-26.) The rates set forth in the Judicial Council's Payment Policies for Independent Contractor Interpreters apply to interpreters retained and paid by California courts using state budget funds from the Trial Court Trust Fund. This scenario does not apply here.

Thus, the Court declines to strike the interpreter costs.

Other Costs

Defendant objects to \$275.05 for CAP and courtesy copies for a Case Management Statement, Notice of Settlement of the Entire Case, and Plaintiff's Objections to Defendant's Designation of Records as Confidential. (Mot., p. 5:10-12.) Defendant also objects to \$28.66 for travel expenses. (Mot., p. 5:17-22.)

This Court requires courtesy copies for ex parte applications and motions. However, the costs incurred to deliver courtesy copies for other filings, such as the Case Management Statement and Notice of Settlement, were not reasonably necessary to the conduct of this litigation. Nor has Plaintiff demonstrated that the local travel costs were necessary to conduct the litigation, as opposed to being merely convenient.

Thus, the Court will strike the "Other" costs in the amount of \$163.41.

In total, the Court strikes the claimed costs by \$363.41, and awards costs in the reduced amount of \$15,501.86.

Thus, the motion to tax costs is GRANTED, IN PART.

RULING:

Defendant Kia America, Inc.'s Motion to Tax Costs is GRANTED, IN PART.

The Court finds that reasonable costs and expenses are \$15,501.86 [\$15,865.27 sought].

Total costs of \$15,501.86 are to be awarded to Plaintiff Mirla Valdes against Defendant Kia America, Inc. and added to the judgment.

Counsel for moving party is ordered to prepare an order and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.